

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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KATY LOPEZ

Plaintiff,

Index No.:

-against-
CITY OF NEW YORK,
OFFICER JONATHAN MUNOZ, individually,
OFFICER EDWIN FLORES, individually, and
JOHN DOE 1, individually

Defendants
-----X

SUMMONS IN A CIVIL ACTION

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, N.Y.
June 10, 2015

Yours etc.,
LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:



Latoya M. Matthew, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574-8330
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SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

Index No.:

-against-
CITY OF NEW YORK,
OFFICER JONATHAN MUNOZ, individually,
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JOHN DOE 1, individually.

VERIFIED COMPLAINT

Defendants
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JURY TRIAL DEMANDED

Plaintiff by her attorneys, Law Office of Michael H. Joseph, PLLC, complaining
of the defendant(s) alleges as follows:

1. Katy Lopez (hereinafter "Plaintiff") is and at all times relevant herein was a resident of the State of New York and currently resides in Westchester County.
2. At all relevant times, The City of New York (Hereinafter "New York") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Police Officer Jonathan Munoz (Hereinafter "Munoz") is and at all times relevant herein was a resident of the State of New York and County of New York.
4. Police Officer Edwin Flores (Hereinafter "Flores") is and at all times relevant herein was a resident of the State of New York and County of New York.

5. John Doe 1, a fictitious name, representing the identity of an individual whose name is not presently known, is and at all times relevant herein was a resident of the State of New York and County of New York
6. On or about March 12, 2014 and at all times relevant herein, Munoz was acting under the color of law.
7. On or about March 12, 2014 and at all times relevant herein, Flores was acting under the color of law.
8. On or about March 12, 2014 and at all times relevant herein, John Doe 1 was acting under the color of law.
9. On or about March 12, 2014, and at all times relevant herein Munoz was employed as a police officer for New York and was acting in the course and scope of his employment.
10. On or about March 12, 2014, and at all times relevant herein Flores was employed as a police officer for New York and was acting in the course and scope of his employment.
11. On or about March 12, 2014, and at all times relevant herein John Doe 1 was employed as a police officer for New York and was acting in the course and scope of his employment.

COUNT I: ASSAULT, BATTERY, SEXUAL ASSAULT and ABUSE

12. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length
13. On or about March 12, 2014, at approximated 1:00AM, Plaintiff was standing on the sidewalk in the vicinity of Saint Nicholas Avenue and West 183rd Street, New York, NY 10033.

14. At the aforesaid time, date and place , while standing on the sidewalk, Plaintiff was approached by New York City Police Officers Munoz, Flores and John Doe 1.
15. At the aforesaid time, date and place and without probable cause nor consent, Munoz proceeded to touch Plaintiff in a sexual manner, touching her torso, stomach, waist and hip and breast area, while asking “what do you have on you?”.
16. At the aforesaid time, date and place, Munoz then placed his hands in Plaintiff’s pockets and proceeded to unlawfully search her.
17. At the aforesaid time, date and place, Munoz, then touched Plaintiff’s hand, holding it within his own hand.
18. At the aforesaid time, date and place, Flores and John Doe 1 watched as Plaintiff was being sexually assaulted and harassed by Munoz and did nothing to prevent nor stop Munoz.
19. At the aforesaid time, date and place, Plaintiff was in fear and apprehension of physical and sexual contact.
20. All of the forgoing occurred without Plaintiff's consent.
21. The aforesaid actions by Defendants were done without cause, provocation, consent or justification.
22. At no time did Plaintiff give permission to Defendants to touch any part of her body, nor did she consent to engage in any form or touching or sexual activity and by and through the foregoing, Munoz sexually assaulted, battered and abused Plaintiff.
23. New York is vicariously liable for the actions of Munoz, Flores and John Doe 1 under New York State Law.

24. The aforementioned actions of Defendants caused Plaintiff to sustain severe emotional injuries, humiliation, emotional harm, shock, depression, anxiety and disability.
25. Plaintiff has in the past been, presently is, and will in the future, continue to be incapacitated from pursuing her usual duties, occupations, vocations, avocations, hobbies and/or recreational pursuits.

**COUNT II: PRIMA FACIE
TORT**

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs, as if the same were more fully set forth herein at length.
27. Defendant Munoz performed the aforesaid acts with improper motives, maliciously, intentionally and with the intent to inflict harm.
28. Defendant Munoz performed the aforesaid actions at all times relevant herein, without excuse or justification.
29. By and through the aforementioned, Plaintiff was caused to sustain the aforesaid damages complained of herein.

COUNT III: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs, as if the same were more fully set forth herein at length.
31. The aforementioned actions by Defendants were outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency.

32. The aforementioned actions by Defendants were done with the intent to and/or the disregard of a substantial probability of causing severe emotional distress to Plaintiff.
33. The aforesaid acts by the Defendants caused the Plaintiff to suffer extreme and severe emotional distress, depression, shock, humiliation and mental and emotional injuries, the full extent of which is not yet known.

**COUNT IV: FALSE ARREST AND DEPRIVATION OF DUE PROCESS UNDER
42 U.S. C. 1983**

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
35. On or about March 12, 2014, at approximated 1:00AM, Plaintiff was unlawfully detained without just cause.
36. By and through the foregoing, Plaintiff was caused to be falsely arrested, detained and had restrictions of her liberty placed upon her.
37. At the aforesaid date, time and place, Munoz arrested Plaintiff by cornering her against a wall, while he proceeded to sexual assault and harass her, thereby making it impossible for her to leave and otherwise restricting her freedom.
38. By and through the foregoing, Munoz intended to confine the Plaintiff without just cause.
39. By and through the foregoing, Plaintiff was conscious of the confinement.
40. By and through the foregoing, Plaintiff did not consent to the confinement.
41. By and through the foregoing, Plaintiff's confinement was not otherwise privileged.
42. Munoz had no probable cause or reasonable grounds to believe that Plaintiff was engaged in unlawful activity on March 12, 2014.

43. Munoz's actions were performed with malice.
44. At all times relevant herein, Munoz was acting under the color of law.
45. At all times relevant herein, Flores was acting under the color of law.
46. At all times relevant herein, John Doe 1 was acting under the color of law.
47. At all times relevant herein, defendant, New York, by employee Munoz, acted with intent to do harm to plaintiff without excuse or justification.
48. At all times relevant herein, defendant, New York, by employee Flores, acted with intent to do harm to plaintiff without excuse or justification.
49. At all times relevant herein, defendant, New York, by employee John Doe 1, acted with intent to do harm to plaintiff without excuse or justification.
50. Solely by reason of the foregoing, Plaintiff was caused to be deprived of her liberty, caused to be subjected to restrictions on her freedom and otherwise deprived of her civil rights and liberties under the under the Fourth, Fifth and Fourteenth amendments under the United States Constitution, as well as rights under the New York State Constitution including but not limited to the right to due process, the right not to be unreasonably seized, the right not be arrested without probable case and Defendants unreasonably seized the Plaintiff and violated her civil and constitutional rights.
51. Defendants are jointly and severally liable for the damages caused to Plaintiff.
52. Defendants' actions violated clearly established rights.
53. Defendants' action shocks the conscience.
54. No reasonable officer in the position of Munoz would have believed the actions of the defendants herein were objectively reasonable.

55. No reasonable officer in the position of Flores would have believed the actions of the defendants herein were objectively reasonable.
56. No reasonable officer in the position of John Doe 1 would have believed the actions of the defendants herein were objectively reasonable.
57. Each defendant had the duty and the opportunity to protect the Plaintiff from the unlawful actions of the other defendant, but failed to do so thereby proximately causing plaintiff's injuries.
58. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff's liberty was constrained in that she was forced to endure the harassment, humiliations, hardships and inhumanities associated with the aforementioned acts, and she was further caused to suffer shock, humiliation, fear and embarrassment, ridicule, and mental anguish, depression, mental shock and mental trauma.

COUNT V: FALSE ARREST AND MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
60. At the aforesaid times, dates, and places, Plaintiff was falsely arrested by the defendants.
61. New York is vicariously liable for the actions of Munoz, Flores and John Doe 1 under New York State Law.
62. The defendants are jointly and severally liable for the harms caused to Plaintiff.
63. One or more exceptions to Article 16 of the CPLR applies.
64. Plaintiff has a pending motion for an Order granting leave to serve a late Notice of Claim against Defendant deemed to be timely served nunc pro tunc under a separate Index Number; and, this action has been commenced within one year and ninety days after the

happening of the events upon which these claims are based and therefore all prerequisites to suit have been fulfilled.

COUNT VI: CIVIL RIGHTS VIOLATIONS PURSUANT TO 42 USC § 1983

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
66. By and through the foregoing, Plaintiff suffered a deprivation of her civil rights and liberties guaranteed under the United States Constitution and the Constitution of the State of New York.
67. At all times relevant herein, defendants acted with intent to do harm to Plaintiff without excuse, justification or Plaintiff's permission.
68. All of the foregoing was a proximate cause of the injuries to Plaintiff more fully described herein.
69. Defendants' actions violated the Plaintiff's civil rights including but not limited to her rights under the Fourth, and Fourteenth Amendments of the United States Constitution including but not limited to the right to due process, the right not to be unreasonably seized, the right not be arrested or seized without probable cause, and defendants further violated her civil and constitutional rights.

COUNT VII: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
71. The foregoing events constitute violations of plaintiff's statutory and constitutional rights, thereby entitling her to attorneys fees, costs and disbursements as permitted by 28 U.S.C. § 1988.

COUNT VIII: CUSTOM, POLICY AND MONELL LIABILITY

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
73. At all times relevant herein, New York had a policy, custom and practice to overlook civil rights abuses by its officers and the procedures used for hiring, supervising, disciplining and training the officers is so deficient that it was likely to cause a violation of civil rights.
74. By and through the foregoing actions of the Defendants and the policies of New York, Plaintiff was subjected cruel and inhumane treatment.
75. New York is vicariously liable for the acts of Munoz, Flores and John Doe 1.
76. The damages sought herein exceed the statutory maximum of all Courts of lower jurisdiction.

WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages.

Dated: White Plains, N.Y.
June 10, 2015

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:



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VERIFICATION

I, KATY LOPEZ the undersigned, am the Plaintiff in the within action; I have read the foregoing VERIFIED COMPLAINT or have had it explained to me in my native language and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.



KATY LOPEZ

SWORN TO BEFORE ME
ON THIS 10 Day Of June, 2015



Notary Public

LATOYA M. MATTHEW
Notary Public, State of New York
No. 02MA6309758
Qualified in Bronx County
Commission Expires Aug. 18, 2018